

Achhelal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 December 2012 · WRIT - C No. 67926 of 2012 · **Writ disposed; petitioner relegated to clause 6.5 complaint before Executive Engineer.**

HEADNOTE

A consumer who pressed only a direction that the distribution licensee decide a representation for correction of electricity bills was told that the proper course is a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The writ was disposed of with an observation that any such complaint be considered and decided expeditiously, preferably within two months of filing with a certified copy of the order.

FACTUAL SUMMARY

The petitioner, Achhelal, filed a writ petition against Dakshinanchal Vidyut Vitran Nigam Ltd. seeking a direction to decide his representation dated 27 October 2012 for correction of electricity bills. That was the only prayer pressed at the hearing. Counsel for the Corporation appeared. The Court did not examine whether the bills were excessive or erroneous, and instead treated the dispute as one for the statutory complaint forum under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

A consumer seeking correction of electricity bills has a right to file a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer; the High Court will not decide the representation itself, and any such complaint may be considered and decided expeditiously, preferably within two months of filing together with a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS REQUIRED CORRECTION

Merits of the representation dated 27.10.2012 left to the Executive Engineer on a clause 6.5 complaint. ¶ 1